

		party beneficiary would be inconsistent with the 'reasonable expectations of the contracting parties' [citation] where they twice specifically vested the right of enforcement in the purchaser and the dealer only." (<i>Id.</i>, at p. 1340.) Under <i>Ochoa</i>, Defendant is not a third-party beneficiary of the RISC between Plaintiffs and Dealer, and Defendant cannot enforce the arbitration provision in the RISC as a third-party beneficiary. Based on the above, the court DENIES Defendant's (Nissan North America, Inc.) unopposed Motion to Compel Arbitration and Stay Proceedings filed on 5-3-23 under ROA No. 17. Court Clerk is to give notice.
13	30-2022-01254056 Sanders v. Logan	Plaintiff's (Nicholas A. Sanders, Trustee of the Joseph L. and Kathleen H. Sanders Family Trust Dated January 28, 1986) Motion to Compel Further Responses to Request for Production, Set One (Motion), filed 2-21-23 under ROA No. 76, is CONTINUED to 11-7-23 at 9:00 a.m. in Department C32. Plaintiff moves to compel a further response to "Request for Production of Documents to Ethan Logan, Set One" directed to Defendant (Ethan Logan). This Request for Production contains 100 requests. (Berger Decl., ¶ 2 and Exhibit A.) A motion to compel further responses ". . . shall be accompanied by a meet and confer declaration." (Code Civ. Proc., § 2031.310, subd. (b)(2).) The declaration must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented in the motion. (Code Civ. Proc., § 2016.040 <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 (<i>Clement</i>), states, " 'The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain "an informal resolution of each issue." [Citations.] This rule is designed "to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. . . ." [Citation.] This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. [Citations.]' [Citation.]" "Nevertheless, we feel compelled to observe that resort to the courts easily could have been avoided here had <i>both</i> parties actually taken to heart Justice Stone's admonitions in <i>Townsend</i> that 'the statute requires that there be a serious effort at negotiation and

		informal resolution.’ [Citation.] Perhaps after 11 years it is necessary to remind trial counsel and the bar once again that ‘[a]rgument is not the same as informal negotiation’ [citation]; that attempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ [citation]; and that ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel. . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’ [Citation.]” (<i>Id.</i>, at p. 1294.) On 9-18-23 under ROA No. 132, the parties filed a Joint Statement stating that they engaged in a telephonic meet and confer conference on 8-14-23 and resolved the motion as to a number of requests, while a number of requests remained at issue. The Joint Statement also states, “Responding party indicated in its opposition to the motion that it will supplement its response to the following categories, which is a subset of those listed above within this Section 3: 19, 20, 22, 23, 36, 57-59, 66-68, 75-81, 82, 87, 96. Responding party remains so willing.” (Joint Statement; 2:8-10.) However, in reviewing Defendant’s Separate Statement (DSS), filed on 7-10-23 under ROA No. 114, it is not clear whether Defendant is willing to respond to the requests listed in the Joint Statement or to the requests that Defendant represented it would comply with in its initial responses. For example, Defendant’s response to Request No. 45 represents that Defendant would produce documents subject to a protective order (DSS; 45:24-45:1.) The Joint Statement does not list Request No. 45 as a Request that Defendant is willing to supplement. Approximately 60 requests remain at issue which is a significant number of unresolved issues. Finally, the Joint Statement does not give explain the issues that separate the parties from resolving the remaining requests at issue. Therefore, the court finds that further meet and confer efforts are necessary to attempt informal resolution of the remaining discovery requests at issue. The court requests the lead trial attorneys to appear in court at the hearing on 9-26-23 to further meet and confer regarding the discovery requests still at issue. At the hearing on 9-26-23, the court will set a date for the filing of a supplemental Joint Statement regarding the discovery requests that are still at issue after the meet and confer conference.
14	30-2022-01254026	Plaintiff’s (Primary Care Associates of California, Inc.) Motion to Compel the Depositions of Defendant Alexis